

**AGREEMENT BETWEEN
NATIONAL FIRE SPRINKLER ASSOCIATION
AND
SPRINKLER FITTERS AND APPRENTICES LOCAL UNION NO. 281
CHICAGO, ILLINOIS
OF THE
UNITED ASSOCIATION OF JOURNEYMEN AND APPRENTICES
OF THE
PLUMBING AND PIPE FITTING INDUSTRY OF THE
UNITED STATES AND CANADA**

This Agreement made this 1st day of July 2024 and operative the 1st day of July 2024, by and between the National Fire Sprinkler Association, Inc., Linthicum Heights, Maryland (hereinafter referred to as Party of the First Part or the “Association”) and Sprinkler Fitters and Apprentices Local Union No. 281, Chicago, Illinois (hereinafter referred to as Party of the Second Part or the “Union” or “Local 281”).

ARTICLE 1

The National Fire Sprinkler Association, Inc., a body corporate under authority from its contractor members pursuant to its By-Laws, has negotiated and executed this Agreement for and on behalf of its contractor members that have given the National Fire Sprinkler Association written authority to negotiate this Collective Bargaining Agreement, each of whom is the "Employer" Party to this contract. A list of the names of those contractor members authorizing the National Fire Sprinkler Association, Inc. to negotiate and execute this Agreement and on whose behalf it is negotiated and executed is attached hereto and made a part hereof.

It is understood that the National Fire Sprinkler Association, Inc. is not responsible for the actions of individual contractor members relative to the application of and compliance with this Agreement. The National Fire Sprinkler Association, Inc. has the exclusive right to appoint employer representatives to all joint committees or trust boards that are in existence and/or come about as a result of the terms and conditions of this Collective Bargaining Agreement.

It is further understood and agreed that any Employer bound by the terms of this Agreement by virtue of the authority described in the above paragraph agrees that, if the contractor member withdraws his membership from the National Fire Sprinkler Association, Inc., or his membership is terminated for any reason, the contractor member shall be bound by all the terms and conditions of the Agreement for the balance of the term of this Agreement. National Fire Sprinkler Association, Inc. agrees to notify the Union when any contractor member withdraws or is terminated from the National Fire Sprinkler Association, and to further notify the Union of any new member joining the Association within a period of thirty days subsequent to National Fire Sprinkler Association Board of Director action. The Union shall submit to the National Fire Sprinkler Association, Inc., within thirty (30) days of the signing of this Agreement a list of those Employers with whom the union has signed separate agreements and shall thereafter advise the Association in writing within thirty (30) days of any new Employers with whom the Union has signed a separate agreement.

ARTICLE 2

This Agreement is entered into in good faith and the subscribers hereto declare their entire willingness to fulfill all requirements contained herein, their acts being done with the full knowledge, consent and authority of the Employer and the Union. It is hoped and believed that this Agreement properly respected will tend to remove the causes for industrial strife and bring about a better understanding between Employer and the Union.

This Agreement constitutes the entire agreement between the parties and supersedes all prior negotiations, commitments, representations and undertakings. No change, modification, amendment, variation or waiver of any of the terms and conditions of this Agreement shall be valid unless executed or consented to, in writing by a duly authorized representative of the Association and a duly authorized representative of the local union. During the terms of this Agreement, contractors, the union and or its members, individually or collectively, shall not have any authority to make any other agreements, verbal or written, with any agents or representatives of the local union, which would change, modify, amend, vary or waive any of the terms and conditions of this Agreement.

FAVORED NATIONS CLAUSE: It is agreed that the National Fire Sprinkler Association, on behalf of its contractor members and other contractors who have assigned their bargaining rights, shall have the right to automatically incorporate into this Agreement any terms and conditions negotiated by any other employer or employer group with Local 281 that is more favorable to employers than what was negotiated by the Association. The provisions of this paragraph will not be construed to prohibit Project Agreements for contractors signatory to this Agreement not to prevent certain temporary concessions for work already on the books for contractors who are being initially signed to this Agreement.

ARTICLE 3

RECOGNITION: The National Fire Sprinkler Association, Inc., for and on behalf of its contractor members that have given written authorization and all other employing contractors becoming signatory hereto, and in response to the Union's request for recognition as the majority 9(a) representative of the Sprinkler Fitter and Apprentice employees of said contractor members, the Union's offer to show and the tender of evidence of its majority support to the Association and the Association's acknowledgement of receipt and acceptance of said evidence of its majority support, hereby recognizes the Union as the sole and exclusive bargaining representative for all Journeyman Sprinkler Fitters and Apprentices in the employ of said contractor members, who are engaged in all work as set forth in Article 16 of this Agreement with respect to wages, hours and other conditions of employment pursuant to Section 9(a) of the National Labor Relations Act.

The Union also recognizes the National Fire Sprinkler Association, Inc. as the Collective Bargaining Agency for its contractor members who have given written authorization and for those contractors who become signatory to this Agreement.

This Agreement shall be binding upon the parties hereto, their successors, administrators, executors and assigns. It is understood that the parties hereto shall not use any sale, transfer, lease, assignment, receivership, or bankruptcy to evade the terms of this Agreement.

In order to protect and preserve for the employees covered by this Agreement all work historically and traditionally performed by them, and in order to prevent any device or subterfuge to avoid the protection or preservation of such work, it is hereby agreed as follows: If and when the Employer shall perform any work of the type covered by this Agreement as a single or joint Employer (which shall be interpreted pursuant to applicable NLRB and judicial principles) within the trade and territorial jurisdiction of Local 281, under its own name or under the name of another, as a corporation, sole proprietorship, partnership, or any other business entity including a joint venture, wherein the Employer (including its officers, directors, owners, partners or stockholders) exercises either directly or indirectly (such as through family members) controlling or majority ownership, management or control over such other entity, the wage and fringe benefit terms and conditions of this Agreement shall be applicable to all such work performed on or after the effective date of this Agreement. The question of single Employer status shall be determined under applicable NLRB and judicial principles, i.e., whether there exists between the two companies an arm's length relationship as found among unintegrated companies and/or whether overall control over critical matters exists at the policy level. A joint Employer, under NLRB and judicial principles, is two independent legal entities that share, codetermine, or meaningfully affect labor relations matters.

Should the Employer establish or maintain such other entity within the meaning of the preceding paragraph, the Employer is under an affirmative obligation to notify the Union of the existence and nature of and work performed by such entity and the nature and extent of its relationship to the signatory Employer. The supplying of false, misleading, or incomplete information (in response to a request by the Union) shall not constitute compliance with this section. The Union shall not unreasonably delay the filing of a grievance under this Article.

Particular disputes arising under the foregoing paragraphs shall be heard by one of four persons to be selected by the parties (alternatively depending upon their availability) as a Special Arbitrator. The Arbitrator shall have the authority to order the Employer to provide appropriate and relevant information in compliance with this clause. It is the intention of the parties hereto that this clause be enforced to the fullest extent permitted by law and that, because this conforms with the parties original intent, it shall apply to all pending and future grievances.

It is not intended that this Article be the exclusive source of rights or remedies which the parties may have under State or Federal Laws.

ARTICLE 4

UNION SECURITY: All present Journeymen Sprinkler Fitters and Apprentices covered by this Agreement who are members of Local Union 281 shall, as a condition of employment, maintain their membership in the Union (to the extent and in the manner provided for and permitted by State and Federal Laws). All other Journeymen Sprinkler Fitters covered by this Agreement, excluding Apprentices, shall as a condition of employment, (to the extent and in the manner provided for and permitted by State and Federal Laws) become Members of Local Union 281 seven (7) days

following July 1, 2024. All new Journeymen Sprinkler Fitters, excluding Apprentices, shall, as a condition of employment, become members of Local Union 281 at the end of seven (7) days employment, (to the extent and in the manner as provided for and permitted by State and Federal Laws).

A person not a member of the Union shall be acceptable for employment as a Journeyman only when he has produced for the employer and Union sworn affidavits of five years' experience in the Sprinkler Industry as a helper, apprentice and/or journeyman on the letterhead of his previous employer or employers. The five (5) year period conforms to the period of apprentice training as set forth in the Apprenticeship Standards of the Sprinkler Industry.

A person not a member of the Union shall be acceptable for employment as an apprentice only after he has met the requirements in the Apprenticeship Standards and been accepted by the Joint Apprenticeship Committee. Upon completion of the probationary period, as set forth in the Apprenticeship Standards, the apprentice shall as a condition of employment, become a member of the Union (to the extent and in the manner as provided for and permitted by State and Federal Laws).

ARTICLE 5

TERRITORY: The territory embraced in this Agreement shall include all of Cook, DuPage, Grundy, Kane, Kendall, Lake, McHenry, and Will Counties in Illinois and that portion of Lake and Porter Counties in Indiana north of U.S. Route 30.

Should the territory of the Local Union be adjusted, the parties to this Agreement shall meet within sixty (60) days of the effective date of any territory adjustments and attempt to reach a mutual agreement relative to the economic conditions applying to the adjusted territory. If there is a failure to reach a mutual agreement within 120 days, either party may request the issue be resolved by binding arbitration.

ARTICLE 6

STANDARDS:

1. Each owner, partnership or corporation shall have and maintain all proper contractor and business licenses.
2. Each owner, partnership or corporation hereunder shall have and maintain the necessary workmen's compensation and other insurances as required by law, and shall furnish to the Local Union a current certificate of said insurance upon demand. Each owner, partnership or corporation hereunder shall also be required to provide the Local Union thirty (30) days prior written notice of any cancellation, break in coverage, and failure to provide such notice shall constitute a material breach of this Agreement. Manpower shall be removed until evidence has been received that coverage has been renewed.

3. Contractors agree to notify the Union at the earliest possible time of any injuries to employees occurring on the job.
4. The parties agree to the Standards set for in Addendum D – the United Association Standards for Excellence.

NON-DISCRIMINATION: There shall be no discrimination with regard to race, color, religion, sex, age, disability, genetic information, sexual orientation, pregnancy, gender identification, national origin, or on any other basis prohibited by state or federal law by either the Union or the Employer relative to employment or conditions of employment. Contractors bound by the terms of this Agreement are likewise bound by an Affirmative Action Plan negotiated with governmental agencies by the National Fire Sprinkler Association, Inc. and Local Union 281. Wherever used in this agreement, the masculine pronoun is understood to refer to both genders.

ARTICLE 7

HOURS OF WORK, OVERTIME AND SHIFTS:

A. **HOURS OF WORK:** The standard work day shall be eight (8) consecutive hours of work between the hours of 6:00 A.M. and 4:30 P.M., at the Superintendent's option. There shall be a defined unpaid thirty (30) minute lunch period between the hours of 11:00 a.m. and 1:00 p.m. The day shift work week shall be forty (40) hours in accordance with the above language.

All employees shall commence work at the regular starting time and shall be on the job until quitting time with one-half hour for lunch. Should an employee leave the job before regular quitting time, he shall advise the foreman before leaving and shall only be paid for the actual hours worked.

Any change in the standard work day shall be by written authorization from both the Union and the employer. Forms will be provided by the Union.

Should a holiday fall during the work week four 10 hour days may be worked and payable at the straight time rate.

There shall not be any penalties or disciplinary actions taken against an employee for refusing to work four 10 hour days.

B. **SHIFTS:** Shift work may be performed at the option of the Employer; however, when shift work is performed, it shall be on the same contract, on the same job site, and it must continue for a period of not less than five (5) consecutive work days. Eight (8) hours of work constitutes a shift. The shift shall start at 6 A.M. on Monday and not continue after 6 A.M. on the following Saturday. The hourly rate for men on the second and/or third shifts shall be fifteen percent (15%) above the basic hourly rate. Hourly rates for shift work will be rounded off to the closest Five Cents (\$0.05) per hour.

The number of men on the second and third shifts shall not exceed twice the number of men on

the first shift.

C. OFF HOURS: On all buildings that are occupied and the hours are not under the control of the contractor, and hours do not fall into the category of the regular work day or the shift clause cannot apply, the contractor may work the "off hours" at straight time plus fifteen percent (15%). Hourly rates for shift work will be rounded off to the closest Five Cents (\$0.05) per hour.

Four 10 hour days at straight time plus fifteen percent (15%) on retrofit work may be worked, Monday through Friday, at the above stated rate where not inconsistent with Federal and State law or regulations. There shall not be any penalties or disciplinary actions taken against an employee for refusing to work four 10 hour days during a holiday week.

For "off hours" shifts only, it is understood and agreed that hours worked up to 3:00 a.m. on Saturdays will be paid at straight time plus fifteen percent (15%).

Should a holiday fall during the work week four 10 hour days may still be worked.

It is understood that prior to the initiation of the "off hours" shift, the owner of such building, owner's representative, or general contractor shall provide a written confirmation on the letterhead of the Building, Building owner's representative, or general contractor as to the owner's necessity that the work in the above paragraph be done during the "off hours" period. It is also understood that an employee who works a regular day shift shall not work the "off hours" clause outlined above during the same 24 hour period. All overtime worked under the "off hours" shift shall be in conformance with paragraph D.

Any change in the standard work day shall be by written authorization from both the Union and the employer.

D. OVERTIME: All overtime worked during the ninth and tenth hours on weekdays (Monday through Friday) shall be at the rate of time and a half. The 9th and 10th hours must be consecutive to the eight hour shift. One hour prior to start of regular work shift, for unloading pipe and material only, in the designated downtown area of Chicago (area bounded by Division Street on the north, Roosevelt to the south, Halsted Street to the west, Lake Michigan to the east) may be worked at the time and a half rate.

All work performed during the first eight hours on Saturday shall be at the rate of time and a half.

All pump test work performed outside the standard work day hours shall be paid at the rate of time and a half.

All service and emergency work outside the standard work day hours shall be paid at the rate of time and a half. All service and emergency work between 9:00 p.m. and 6:00 a.m. shall be paid at the rate of double time. Emergency work is any work that has to be done immediately to return a system back to standby normal service or any work to repair a system in jeopardy of having to be taken out of standby normal service. Service work is any scheduled maintenance or repair work on a fire sprinkler system.

The following days shall be considered Holidays: New Year's Day, Memorial Day, July 4th, Labor Day, Thanksgiving Day and Christmas Day. When one of the above holidays falls on Sunday, the following Monday shall be considered the holiday and all work performed on said day shall be at the double time rate. If an employer unilaterally decides to cancel work on the day before or after a holiday and the jobsite remains open for the employer, the affected employees will be paid four (4) hours of wages, to be paid in the next pay period. All other overtime shall be at the rate of double time including Sundays and Holidays.

Employers will receive an out of work list every week via email provided they supply and maintain with the Union a current email address. The out of work list will be sent every Monday unless a contractor elects not to receive it every week. However, contractors opting not to receive a weekly out of work list, would receive the out of work list upon request.

ARTICLE 8

A. WAGES: The rate of wage to be paid under this Agreement for Sprinkler Fitters shall be paid and/or allocated as follows:

July 1, 2024 – Economic package increase of \$4.50 per hour to be allocated by the Union. The Union has the right to allocate the \$4.50 per hour on the check as a wage increase and/or to the existing benefit funds. Effective July 1, 2024, the wage rate for a Journeyman Sprinkler Fitter shall be Sixty Dollars and Ten Cents (\$60.10) per hour.

July 1, 2025 – Economic package increase of \$4.25 per hour to be allocated by the Union. The Union has the right to allocate the \$4.25 per hour on the check as a wage increase and/or to the existing benefit funds. Notice of the July 1, 2025, wage allocation shall be provided by Local 281 prior to July 1, 2025.

July 1, 2026 – Economic package increase of \$4.25 per hour to be allocated by the Union. The Union has the right to allocate the \$4.25 per hour on the check as a wage increase and/or to the existing benefit funds. Notice of the July 1, 2026, wage allocation shall be provided by Local 281 prior to July 1, 2026.

July 1, 2027 – Economic package increase of \$4.25 per hour to be allocated by the Union. The Union has the right to allocate the \$4.25 per hour on the check as a wage increase and/or to the existing benefit funds. Notice of the July 1, 2027, wage allocation shall be provided by Local 281 prior to July 1, 2027.

July 1, 2028 – Economic package increase of \$4.50 per hour to be allocated by the Union. The Union has the right to allocate the \$4.50 per hour on the check as a wage increase and/or to the existing benefit funds. Notice of the July 1, 2028, wage allocation shall be provided by Local 281 prior to July 1, 2028.

The selection and appointment of a Foreman and General Foreman is the responsibility of the employer in keeping with this Agreement. One man shall be designated as Foreman on each job. Effective July 1, 2024, the rate of wage for Foreman shall be a minimum of Two Dollars and Seventy-Five Cents (\$2.75) per hour above the Journeyman's rate.

The rate of wage for the General Foreman shall be Three Dollars (\$3.00) per hour above the Journeyman's rate. All overtime for the General Foreman shall be at the applicable rate for overtime at the General Foreman's rate of pay.

There shall be a Foreman on each job and a General Foreman on each job with thirty (30) or more employees and the Employer may select from among his Journeymen employees whomever he wishes to be Foreman and General Foreman.

B. PAYMENT OF WAGES: Wages shall be paid on or before the end of an employee's workday each Thursday, including all wages due up to and including the previous Friday.

The companies shall have the right to pay by check or by means of direct electronic deposit of funds to accounts maintained by the employees covered by this Agreement. Contractors shall provide the employees with appropriate documentation (see next paragraph) of the wages paid and deductions made.

The employee shall receive a check stub with each check showing the Employer's name and address, pay period covered, regular and overtime wages, and all deductions, and also the amount of contributions made on behalf of the employees to the various fringe benefit funds. The employee's pay information may be provided by the Employer via electronic mail.

In the event a Journeyman Sprinkler Fitter or Apprentice is laid off, he shall be paid in full within twenty-four (24) hours from when his services are thus discontinued.

The employer shall give four (4) hours' notice prior to lay-off during the regular work shift for lack of work to any fitter or apprentice. Should notice not be given to employee, the employee shall receive four (4) hours' pay in lieu of said notice. Should the employee, as notified, leave his job before the four (4) hours have elapsed, said employee shall be paid only for actual hours worked.

In the event a Journeyman Sprinkler Fitter or Apprentice is discharged, he shall be paid in full within twenty-four hours of the time his services are thus discontinued, either in person or by certified mail, return receipt requested, to the address on record.

The pay period for any Sprinkler Fitter or Apprentice who quits shall be his regular pay period.

An employee who does not receive his paycheck at the time set forth in this Article has the responsibility to notify the Employer concerning the late paycheck and subsequent to notification, the employee shall be entitled to eight (8) hours pay for each twenty-four (24) hour period until he receives his paycheck.

An employer who regularly mails the paychecks shall not be required to make penalty payments for late checks due to post office services; provided the check was mailed in sufficient time to arrive within the time limits of this Article.

A bad check shall be considered nonpayment of wages and shall be subject to penalties imposed for late payment, including, but not limited to, attorneys' costs and fees associated with any legal action instituted by the Union to remedy the deficiency. Any company whose paycheck is returned for insufficient funds shall be required by the Union to pay by Certified Check thereafter for a period of twelve (12) consecutive months.

An employee, when he reports for work, and for whom no work is provided, shall receive two (2) hours' pay unless he has been notified before leaving home not to report, or if strike conditions exist, or if he is prevented from working because of weather.

No fitter and/or apprentice working for an employer shall work overtime at sprinkler work for another employer during any twenty-four (24) hour period and over weekends. If, however, such overtime is necessary, authorization must be received from the employee's primary employer and the Local Union.

ARTICLE 9

PER DIEM: All members performing work in the area bounded by Fullerton Street to the north, Cermak Road to the south, Ashland Avenue to the west, and Lake Michigan to the east shall be reimbursed for all parking expenses or paid carfare of \$15.00 per day. All members performing work in Grundy, Kane, Kendall, McHenry, and Will counties in Illinois and Porter County in Indiana North of U.S. Route 30 shall be paid carfare at the rate of \$15.00 per day.

When an employee moves from job to job during the course of a day, he shall be paid at the standard mileage rate as set by the Internal Revenue Service (I.R.S). for the most direct route and shall be reimbursed by the employer for any additional parking expenses incurred by the employee. When an employer furnishes an employee a company vehicle, the expenses, as set forth in this Article shall not be paid to the employee that is furnished the company vehicle, nor shall such expenses be paid to any passengers in said company vehicle.

An employee is paid during each work day only one per diem as set forth herein, plus the standard mileage rate as set by the IRS for the most direct route for moves from the first job to a second or third job during the course of day.

ARTICLE 10

MATERIALS, EQUIPMENT FABRICATION: The handling and installing of all materials connected with sprinkler systems, including all loading and unloading at the site of the job, shall be done by the employees covered by this Agreement. This shall not include the handling of materials at the shops or factories. The Party of the First Part shall have the right of making-on only one (1) screwed fitting on threaded pipe permanently tight at the factory or shop, and the Party of the Second Part shall install this material as delivered without objection or interruption.

The foregoing shall, however, not apply to spool pieces, feed main nipples and risers and pipe fittings that must be hot dipped.

Welded pipe formations shall be accepted for installation provided there is a U.A. label or the welding is performed in a shop by men receiving the Sprinkler Fitter building trade rate of the area in which the shop is located.

The preparation of pipe for mechanical fittings may be performed in the factory. The attachment of these mechanical fittings shall be performed on the job site by employees covered by this Collective Bargaining Agreement.

All cutting and welding, acetylene or electric, brazing and/or soldering of copper pipe, done on the jobsite in connection with the work covered in this Agreement shall be performed by employees covered by this Agreement.

No sprinkler head shall be installed or prepared for installation (i.e., application of tape or pipe sealant) on any material unless done by employees working under this Agreement. This shall not include heads made on, taped and/or sealed by the manufacturer.

ARTICLE 11

SAFETY: In the performance of work, the employer and employees shall at all times comply with all applicable state and municipal safety laws or regulations and with all requirements of the contractors' insurers. The employer shall at all times provide for the safety of the men in his employ by the cribbing and sheeting, where necessary, of all ditches in which men are required to work. Provisions shall be made to furnish scaffolds, staging and ladders suitable for the work being performed. Employees shall perform work in a neat and efficient manner.

The Employer and employees hereby agree to comply with all applicable Federal, State and Municipal safety and health laws and regulations, as well as the requirements of the "Authority Having Jurisdiction" on all jobs.

The Employer shall furnish at no cost to the employee all safety equipment as required by applicable Federal, State and Municipal safety and health laws and regulations, as well as all equipment by the "Authority Having Jurisdiction" on all jobs, including PPE, as applicable.

No employee shall be required to work in an area where Epoxy Resins are being applied by other crafts, nor in areas where airborne asbestos is present without being provided proper and authorized safety equipment.

The parties to this Agreement agree to establish a safety committee to formulate a comprehensive safety program. This program shall include job safety instruction.

The Union and the Association agree on the importance and need for a safe work environment. As such, the parties agree to establish safety standards for the industry. These standards shall include OSHA-30, First Aid, CPR, Hilti, Fall Protection, Scissor Lifts, Scaffolds, and Crane

Signaling. The first priority of the safety standards will be OSHA-30. The JATC will offer to the members OSHA-30 training after the standard work day at no expense to the member or contractor. The Union understands and recognizes that Fitters who choose not to complete applicable training per the standards may not be employed on jobs requiring such training. Employees shall remain current per OSHA standards or by jobsite requirements.

RADIATION EXPOSURE: The Employer recognizes the need to maintain safe working conditions for the employees exposed to radiation. The Employer agrees to be bound by the rules and regulations established by the “Authority Having Jurisdiction” for safety on nuclear projects. Exposure to radiation shall be kept as low as possible.

An employee who receives his maximum radiation exposure limits prior to the end of any regular work week (Monday through Friday) will be transferred to other suitable work without loss of pay or he shall be paid wages and fringe benefits for the week as if he had worked a full week.

ARTICLE 12

MANPOWER: All employees, when working at the installation, operating, maintenance repair, servicing, inspecting, testing, renovation, upgrading, modernization, replacement and dismantling of fire protection and fire control systems, shall work under the terms and conditions of this Collective Bargaining Agreement.

Contractors shall notify the Union via email (to an address provided by the Union) of any change in union members’ employment status within twenty-four (24) hours of said change.

ARTICLE 13

HANDLING OF TOOLS: Tools will be furnished to employees covered by this Agreement. Each employee shall use due diligence in the handling of tools and equipment. At the close of each day's work, employees must put tools in their proper place and see to it that chests and lockers are left in a place as safe from theft and injury as possible. Each employee shall reimburse the employer for all tools lost or injured by him unless satisfactory explanation is given, but subject in all cases to ordinary wear and tear and to loss or injury from the work being performed. No employee shall be allowed to carry tools or materials belonging to the contractor in his vehicle. No employee may lease or contract his vehicle to his present employer or any other employer party to this agreement.

ARTICLE 14

PRODUCTION OF LABOR: It is agreed that a fair day's work shall be performed at all times and that the highest possible standard of work shall be maintained. It is agreed that there shall be sufficient number of employees at all times to handle work in the proper manner. There shall be no limitation as to the manner in which work shall be done. No unwritten or other rules not embodied in this Agreement are to apply to the execution of work under this Agreement.

ARTICLE 15

GRIEVANCE PROCEDURE AND ARBITRATION: During the term of this Agreement there shall be no strikes, lock-outs, slow-downs or work stoppages, this shall not include strikes, which may be called by the Local Building Trades Council and sanctioned in writing by the United Association, such strikes to be local in character.

Non-payment of wages, employee withholdings, including but not limited to Pay Day Savings deductions, payment of wages by checks of insufficient funds, delinquency in contributions to all Funds as required in this Agreement shall be excluded from this grievance procedure and the Union shall be within its rights to remove men from the job.

All disputes and grievances by employee and employers relative to the interpretation or application of this Agreement shall be processed in the following manner:

1. If an employee has a grievance relative to the interpretation or application of this Agreement, he shall advise the Business Agent of the Local Union.
2. The Business Agent shall contact the employer within 5 working days and attempt to resolve said grievance. If he fails to resolve the grievance the Business Agent shall
3. Reduce the grievance to writing, setting forth the exact date of the alleged grievance, the nature of the grievance and the Article of the Agreement, which has been violated and submit this to the National Fire Sprinkler Association, Inc. by registered mail requesting a meeting.

Within 10 working days of the receipt of said notice, the National Fire Sprinkler Association, Inc. shall meet with representatives of the Local Union and the employer involved to resolve said grievance.

4. If the parties fail to resolve the grievance, they shall immediately submit the grievance to final and binding arbitration as follows:

The Union and National Fire Sprinkler Association, Inc. shall request from the American Arbitration Association a list of five names from which the parties will select an arbitrator.

The parties shall attempt, by mutual agreement, to select one of the five names submitted by the American Arbitration Association. If they are unable to reach an agreement, the five names shall be placed in a hat and one name drawn, said name shall be the Chairman of the Board of Arbitration composed of one representative from the Union and one representative from the National Fire Sprinkler Association, Inc.

The majority decision of this Board of Arbitration of three shall be final and binding upon the parties.

The Board of Arbitration must confine itself to the interpretation and applications of the Agreement and has no power to alter, change or amend said Agreement.

If the employer or the Association has a grievance relative to the interpretation or application of this Agreement, the Grievance shall be submitted in writing by certified or registered mail to the Union, setting forth the exact date of the grievance, the nature of the grievance and the Article of the Agreement, which has been violated.

The Union shall meet with the Employer within 5 working days of receipt of the grievance to discuss said grievance.

If the parties fail to resolve the grievance the Union and the National Fire Sprinkler Association, Inc. with the employer present, shall meet within 10 working days of notice that the parties did not resolve the grievance.

If the Union and the National Fire Sprinkler Association, Inc. fail to resolve the grievance it shall be submitted to final and binding arbitration as set forth herein.

The loser shall bear the total expense of the Arbitration.

All grievances to be considered must be submitted within ten (10) days of the occurrence of the alleged grievance.

The National Fire Sprinkler Association, Inc. shall represent in the Grievance Procedure and Arbitration as set forth in Article 15, only those contractors that at the time of the occurrence of the alleged grievance are members of the National Fire Sprinkler Association, Inc.

ARTICLE 16

JURISDICTION: The work of the sprinkler fitter shall consist of the installation, operation, maintenance, repairing, servicing, inspecting, testing, renovation, upgrading, modernization, replacement and dismantling of all fire protection and fire control systems including the inspection, testing and dismantling of pipe, the unloading, handling by hand or with power equipment and installation of all piping or tubing, appurtenances and equipment pertaining thereto, including both overhead and underground water mains, fire hydrants and hydrant mains, standpipes, and hose connections to sprinkler systems, sprinkler tank heaters, air lines and thermal systems used in connection with fire protection and alarm systems, also tanks and pumps connected thereto, and also including but not limited to mulsifyre, waterfog, spray, CO-2, foam, fog foam and cardox, gas suppression, window releases, water mist, Halon, FM200, NOVEC 1230, and V.E.S.D.A (Very Early Smoke Detection Apparatus).

In addition to the aforementioned, all applicable points of the 50 Articles of Jurisdiction of the U.A., as may be amended from time to time, shall be included (See Addendum A to this Agreement).

The laying out, cutting of holes, setting of sleeves and inserts including core drilling shall be the

work of the fitter.

Any contractor who subcontracts work covered by this Agreement shall subcontract said work to a contractor that has a Collective Bargaining Agreement with Local Union 281.

ARTICLE 17

APPRENTICESHIP: The Parties mutually agreed that an Apprenticeship Program has been established and that the working conditions of apprentices are set forth in the Joint Apprenticeship Standards.

It is further mutually agreed that a National Automatic Sprinkler Industry Apprentice & Training Fund has been established for the purpose of providing support of the apprentice training and education programs of the Joint Apprenticeship Committee for apprentices covered by this Collective Bargaining Agreement.

This Fund has been created under a Declaration of Trust and established by National Fire Sprinkler Association, Inc., and Sprinkler Fitters and Apprentices Local Union No. 281, Chicago, Illinois of the United Association of Journeymen and Apprentices of the Plumbing and Pipe Fitting Industry of the United States and Canada. The Trustees of said Fund shall consist of four (4) members, two (2) appointed or elected by National Fire Sprinkler Association, Inc., and two (2) appointed or elected by Local Union No. 281. It shall be the duty of said Trustees to collect contributions, as provided below, from employers who are party to this Agreement, and to remit the same, less the expenses of collection and administration, to the Joint Apprenticeship Committee established in the territory embraced by this Agreement.

Each employer who is a party to this Agreement shall pay to the Fund the amounts referenced below for all hours worked by all employees whose wages are covered by this Collective Bargaining Agreement. Neither the Trustees nor the National Fire Sprinkler Association, Inc., nor the employers shall be responsible for any cost or expense of the Fund, or of the Joint Apprenticeship Committee beyond the contribution rate set forth below, unless the employer fails to timely remit said payment(s), at which time the employer shall be responsible for interest at the rate of 12%, liquidated damages in the amount of 10% of the delinquency, audit fees and attorneys fees and costs associated with collection efforts under this Agreement.

July 1, 2024 – contribution rate of \$1.00 per hour for each hour worked.

July 1, 2025 – contribution rate of \$1.05 per hour for each hour worked.

July 1, 2026 – contribution rate of \$1.10 per hour for each hour worked.

All Apprentice Fund contributions shall be made no later than the 15th day of each month subsequent to the month in which the hours were worked.

In consideration of the benefits to be derived and other good and valuable consideration, the employers bound by this Agreement do hereby join and subscribe to the Declaration of Trust of the National Automatic Sprinkler Industry Apprentice & Training Fund made between National Fire Sprinkler Association, Inc. and Sprinkler Fitters and Apprentices Local Union No. 281, and

agree to be bound by any amendments thereto, and further authorize National Fire Sprinkler Association, Inc. to name the two employer Trustees and successor Trustees to administer said Fund, and hereby ratify and accept said two employer Trustees, and the terms and conditions of said Declaration of Trust as fully and completely as if made by the undersigned employers.

UNITED ASSOCIATION INTERNATIONAL TRAINING FUND: Each employer who is a party to this Agreement shall pay to the United Association International Training Fund, Ten Cents (\$0.10) per hour for all hours worked by all employees whose wages are covered by this Collective Bargaining Agreement. The contributions shall be remitted on the Local 281 Health and Welfare forms as a separate line item. The employer shall not be responsible for any expense or cost beyond this hourly contribution as set forth herein, unless employer fails to timely remit said payment(s), at which time the employer shall be responsible for interest at the rate of 12%, liquidated damages in the amount of 10% of the delinquency, audit fees and attorneys fees and costs associated with collection efforts under this Agreement.

Any employer who issues a bad check for payment of contributions under this article shall pay by certified check for a period of twelve (12) consecutive months thereafter.

All United Association International Training Fund contributions shall be made no later than the 15th day of each month subsequent to the month in which the hours were worked.

The rate of wage of Apprentices indentured

First 6 Months	45% of the Journeyman's rate
Second 6 Months	45% of the Journeyman's rate
Second Year	55% of the Journeyman's rate
Third Year	60% of the Journeyman's rate
Fourth Year	70% of the Journeyman's rate
Fifth Year	80% of the Journeyman's rate

The following Apprenticeship Program school/training schedule shall apply to all apprentices newly indentured on or after July 1, 2020:

Orientation for all apprentices shall be two weeks (or eighty (80) hours) and the employer shall pay an apprentice a per diem of Forty-Five Dollars (\$45.00) in lieu of wages for that orientation period only.

In year one of the Apprenticeship Program, the first six months – Apprentice(s) shall work for a signatory contractor Monday through Friday and will attend school (8 hours) on Saturdays at the rate of Forty-Five Dollars (\$45.00) per diem, in lieu of wages and any benefits, for 22 school sessions.

In year one of the Apprenticeship Program, the second six months – Apprentice(s) shall work for a signatory contractor Monday through Friday and will attend school (8 hours/paid) one day each week, for a total of 22 paid days during that second six month period.

In years two, three and four of the Apprenticeship Program, Apprentice(s) shall work for a signatory contractor for all weekdays other than one day every other week during which the apprentice shall attend school (eight hours paid), for a total of 22 paid days per year.

In year five of the Apprenticeship Program, there shall be no school days and all apprenticeship hours shall be on the job training under the supervision of the Joint Apprenticeship Training Committee (JATC).

Apprentice rates are to be adjusted to the nearest Five Cents (\$0.05).

All employers employing newly indentured apprentices on and after July 1, 2020 shall pay hourly contributions to the Health and Welfare Fund coinciding with the following percentages of the rate of contribution for Journeymen sprinkler fitters:

Year 1	45%
Year 2	55%
Year 3	60%
Year 4	70%
Year 5	80%

Employers shall pay no Education Fund contribution on behalf of newly indentured apprentices for the first twelve (12) months of their apprenticeship training. After the first twelve (12) months of the apprenticeship training, the Apprentice shall receive the same Education Fund contribution as Journeyman Sprinkler Fitters.

Apprentices shall receive no NASI Pension contribution for the first 18 months of the Apprenticeship Program. In the second six months of year two of the Apprenticeship Program and thereafter, Apprentices shall receive the same NASI Pension contribution as Journeyman Sprinkler Fitters (per Article 19 of this Agreement).

In year one, the Apprentice shall receive no contribution for the Sprinkler Industry Supplemental Pension Fund. In years two, three, four, and five, the Apprentice shall receive an hourly contribution equal to Thirty-Three Percent (33%) of the contribution for a Journeyman sprinkler fitter.

The following Apprenticeship Program school/training schedule shall apply to all apprentices newly indentured on or after July 1, 2024:

There shall be no Saturday school. All first-year apprentices will attend day school (8 hours paid) once per week. All apprentices in years two through four will attend day school (8 hours paid) bi-weekly. There shall be no classroom training for fifth year apprentices.

Apprentices will receive the full Training Fund contribution rate beginning year one of the apprenticeship and continuing throughout the duration of the apprenticeship.

The Health and Welfare contribution rate for apprentices shall be as follows:

- First year apprentices – Seventy percent (70%) of the journeyman contribution rate.
- Second and Third year apprentices – Seventy-five percent (75%) of the journeyman

contribution rate.

- Fourth year apprentices – Eighty percent (80%) of the journeyman contribution rate
- Fifth year apprentices – Eighty-five percent (85%) of the journeyman contribution rate

If an apprentice is required to work off hours or shift work on the second or third shift at the shift rate of 15% above straight time and the apprentice attends school on their regularly scheduled school day within the same twenty-four (24) hour period that the shift work ended, the apprentice shall be paid at the rate of time and a half for all hours of school attendance.

The number of Apprentices under training shall be determined by the Joint Apprentice Committee on a semi-annual basis. The JAC shall review the number of retirees, deaths, quits, and anticipated workload in making this determination.

When an employer employs six (6) or more men, one of these shall be an Apprentice. The jobsite ratio of apprentice to journeyman shall not exceed four (4) apprentices to one (1) journeyman, unless otherwise approved by the Business Manager.

A violation of the Apprenticeship Standards by either party shall be a violation of this Agreement.

ARTICLE 18

HEALTH AND WELFARE: It is mutually agreed that a Health and Welfare Fund has been established, and the employers bound by this Agreement do hereby join and subscribe to the Fund's Declaration of Trust and/or Trust Agreement, as it may be restated and amended from time to time. For the purpose of accomplishing the above, there has been created a Board of Trustees consisting of four (4) members, two (2) appointed or elected by the employers and two (2) appointed or elected by the Union. The duty of this Board of Trustees shall be to execute an Agreement and Declaration of Trust in accordance with Federal, State and Local Laws and to take all necessary steps to carry out the legal establishment and operation of the above agreed Health and Welfare Fund.

For the purpose of the support, maintenance and administration of the Fund, each contractor party to this Agreement shall pay to the Fund Fourteen Dollars and Ninety-Five Cents (\$14.95) per hour effective July 1, 2024 for all hours worked by all employees covered by this Collective Bargaining Agreement. This increase shall be funded from the economic package increase set forth in Article 8 and will not be an additional employer cost.

For the purpose of the support, maintenance and administration of the Fund, each contractor party to this Agreement shall pay to the Fund the amount as set by the Union each year for all hours worked by all employees covered by this Collective Bargaining Agreement. The annual increase, if any, shall be funded from the economic package increase set forth in Article 8 and will not be an additional employer cost.

The employer shall not be responsible for any expense or cost beyond this hourly contribution as set forth herein, unless employer fails to timely remit said payment, at which time the employer shall be responsible for interest at the rate of 12%, liquidated damages in the amount of 10% of the delinquency, audit fees and attorneys fees and costs associated with collection efforts under

this Agreement.

Any employer who issues a bad check for payment of contributions under this article shall pay by certified check for a period of twelve (12) consecutive months thereafter.

All Health and Welfare contributions shall be made no later than the 15th day of each month subsequent to the month in which the hours were worked.

ARTICLE 19

PENSION: It is mutually agreed that a Pension Fund has been established on a National Automatic Sprinkler Industry basis for those employees whose wages are covered by this Collective Bargaining Agreement, and the employers bound by this Agreement do hereby join and subscribe to the Fund's Declaration of Trust and/or Trust Agreement, as it may be restated and amended from time to time.

For the purpose of the support, maintenance and administration of the Fund, each contractor member who is a party to this Agreement, shall pay to the National Automatic Sprinkler Industry Pension Fund, Seven Dollars and Thirty Cents (\$7.30) per hour for all hours worked by all employees covered by this Collective Bargaining Agreement effective July 1, 2024. Annual increases, if any, shall be funded from the economic package increase set forth in Article 8 and will not be an additional employer cost.

The employer shall not be responsible for any expense or cost beyond this hourly contribution as set forth herein, unless employer fails to timely remit said payment(s), at which time the employer shall be responsible for interest at the rate of 12%, liquidated damages in the amount of 10% of the delinquency, audit fees and attorneys fees and costs associated with collection efforts under this Agreement.

Any employer who issues a bad check for payment of contributions under this article shall pay by certified check for a period of twelve (12) consecutive months thereafter.

The Trustees of the National Automatic Sprinkler Industry Pension Fund are authorized to enter into reciprocal agreements with the Trustees of other pension funds providing for the transfer of contributions between funds so that employees temporarily working outside their home funds' jurisdiction will not lose credit or eligibility for benefits in their home funds. The Trustees shall determine the terms of such reciprocal agreements, the manner of crediting reciprocal contributions and all questions of eligibility based on hours worked under reciprocal agreements.

All Pension Fund contributions shall be made no later than the 15th day of each month subsequent to the month in which the hours were worked.

ARTICLE 20

SUPPLEMENTAL PENSION: It is mutually agreed that an Automatic Sprinkler Industry Supplemental Defined Contribution Pension Fund is hereby established for those employees

whose wages are covered by this collective bargaining agreement, and the employers bound by this Agreement do hereby join and subscribe to the Fund's Declaration of Trust and/or Trust Agreement, as it may be restated and amended from time to time.

For the purpose of the support, maintenance and administration of the fund, each contractor who is a party to this agreement shall pay to the fund Twelve Dollars (\$12.00) per hour for all hours worked by all employees covered by this collective bargaining agreement effective on and after July 1, 2024. This increase shall be funded from the economic package increase set forth in Article 8 and will not be an additional employer cost.

For the purpose of the support, maintenance and administration of the Fund, each contractor party to this Agreement shall pay to the Fund the amount as set by the Union each year for all hours worked by all employees covered by this Collective Bargaining Agreement. The annual increase, if any, shall be funded from the economic package set forth in Article 8 and will not be an additional employer cost.

The employer shall not be responsible for any expense or cost beyond this hourly contribution as set forth herein, unless employer fails to timely remit said payment, at which time the employer shall be responsible for interest at the rate of 12%, liquidated damages in the amount of 10% of the delinquency, audit fees and attorneys fees and costs associated with collection efforts under this Agreement.

Any employer who issues a bad check for payment of contributions under this article shall pay by certified check for a period of twelve (12) consecutive months thereafter.

This fund is created under an Agreement and Declaration of Trust by and between National Fire Sprinkler Association, Inc. and Sprinkler Fitters and Apprentices Local Unions No. 709, Los Angeles, California, No. 483, San Francisco, California and No. 699, Seattle, Washington. There shall be an equal number of Association and Union trustees, appointed by the respective parties to this agreement. It shall be the duty of the trustees to administer the Agreement and Declaration of Trust in accordance with Federal and State Laws and to take all necessary steps to carry out the legal operation of the fund.

The employers bound by this agreement do hereby join in and subscribe to the Agreement and Declaration of Trust of the Automatic Sprinkler Industry Supplemental Defined Contribution Pension Fund and agree to be bound by any amendments thereto.

Monthly contributions shall be made by all employers party to this agreement on behalf of each individual employee to a depository selected and agreed to by the Joint Committee.

All Supplemental Pension contributions shall be made no later than the 15th day of each month subsequent to the month in which the hours were worked.

ARTICLE 21

ASSENT OF PENSION: In consideration of benefits to be derived and other good and valuable

considerations, Sprinkler Fitters and Apprentices Local Union No. 281, Chicago, Illinois, although not a party to the Local 669 Agreement, does hereby join in and does subscribe to the Declarations of Trust of the National Automatic Sprinkler Industry Pension Fund made between the National Fire Sprinkler Association, Inc. and Local Union 669, and agrees to be bound by any amendments thereto, and the employers to this Agreement with Sprinkler Fitters and Apprentices Local Union 281, Chicago, Illinois, agree to make contributions in the amounts as set forth in this Agreement to the Trustees as provided by the Trust Agreements between the National Fire Sprinkler Association, Inc. and Local Union 669, and further, the parties hereto authorize said parties of the 669 Agreement to name Trustees and successor Trustees to administer said Pension Fund, hereby ratifies and accepts such Trustees in the terms and conditions of said Trust as fully and completely as if made by the undersigned.

It is mutually agreed that the subscribers to this Agreement (members of the National Fire Sprinkler Association, Inc. and other contractors who subscribe to this Agreement) hereby authorize the Trustees of the Health and Welfare Fund (Article 18), the Pension Fund (Article 19), and the Apprentice Fund (Article 17), to audit the payroll records (all necessary related materials and books) to ascertain that each contractor is making proper contributions to the Funds as set forth in this Agreement, and that the employer shall be responsible for interest at the rate of 12%, liquidated damages in the amount of 10% of any delinquencies, reasonable audit fees and actual attorneys fees and costs associated with collection efforts under this Agreement.

ARTICLE 22

UNIFORMITY OF FRINGE CONTRIBUTIONS: Whereas this Agreement provides for contributions to the National Automatic Sprinkler Industry Pension Fund by contractors party to this Agreement, and Whereas, the Trustees of this Fund require uniform contributions to this Fund, therefore, the Pension contributions as set forth in this Agreement shall be uniform and identical with the hourly contributions to the Pension Fund as required by the Local Union 669 Collective Bargaining Agreement, effective always on the anniversary date of this Agreement.

ARTICLE 23

INDUSTRY FUND: Employers shall pay to the National Fire Sprinkler Industry Promotion Fund a sum of money equal to Seventy Cents (\$0.70) per hour for each hour worked by each employee subject to this agreement effective July 1, 2024.

The employer shall not be responsible for any expense or cost beyond this hourly contribution as set forth herein, unless employer fails to timely remit said payment, at which time the employer shall be responsible for interest at the rate of 12%, liquidated damages in the amount of 10% of the delinquency, audit fees and attorneys fees and costs associated with collection efforts under this Agreement.

Any employer who issues a bad check for payment of contributions under this article shall pay by certified check for a period of twelve (12) consecutive months thereafter.

Employers agree to become a party to the Agreement and Declaration of Trust establishing the

National Fire Sprinkler Industry Promotion Fund. It is understood and agreed that the fund and program of benefits at all times through the life of this agreement shall be such as to qualify for approval by the Internal Revenue Bureau of the United States Treasury Department and other appropriate government agencies if necessary to permit all employers an income tax deduction for contributions paid.

All Industry Fund contributions shall be made no later than the 15th day of each month subsequent to the month in which the hours were worked.

It is agreed by the Parties to this Agreement that the contributions covered by this Article shall not be used in any manner which would be adverse to the interests of Local Union

281. The Association agrees to meet periodically, at least once a year, to discuss the use of these Funds.

It is further agreed that should any of the contributions be used in any manner which is or are adverse to the interests of Local Union 281, then the Parties to the Agreement shall meet within ten (10) days to resolve said issue.

ARTICLE 24

MONTHLY REPORTS AND SURETY BOND: Employers party to this Agreement shall submit contributions to the Welfare, Pension, Educational, S.I.S. and Industry Promotion Funds in accordance with rules, regulations and procedures established by the Trustees of the Welfare, Pension, Educational, S.I.S. and Industry Promotion Funds.

Failure by the employer to timely remit said reports and contributions shall subject the employer to interest at the rate of 12%, liquidated damages in the amount of 10% of the delinquency, audit fees and attorneys' fees and costs associated with collection efforts under this Agreement.

The Employer agrees that the Trustees of the Welfare Trust, the Pension Trust, the Educational Trust, the S.I.S. Trust, and the Industry Promotion Trust, or their designees, shall have the authority to order an audit of the payroll, wage and related records (including supporting work sheets) of the Employer for the purpose of insuring compliance with the terms of this Agreement requiring contributions to the Trust Funds.

The Employer agrees that in the event the Trustees institute or participate in legal proceedings to collect payments or contributions from an Employer, the Employer shall also be required to pay reasonable attorney's fees, expenses of collection and, unless otherwise set forth in this Agreement, interest at the highest rate permitted by the laws of the State where the legal proceeding is instituted.

Each contractor who is a subscriber to this Agreement or who desires to become a subscriber to this Agreement shall furnish to the Union a Surety Bond with a U.S. Treasury Listed Bonding Company in proportion to the average number of Local 281 employees employed per month during the preceding year to assure the payment of wages and all fringe benefit contributions as set forth in this Agreement:

<u>Average # of Employees</u>	<u>Amount of Bond</u>
1-5	\$35,000
6-12	\$75,000
13-20	\$150,000
21-50	\$350,000
51+	\$600,000

Said bond shall be on such form as provided by the Union and reviewed by the NFSA and shall expressly guarantee, in the following order of priority:

1. Wages, including payday savings and dues, as required by this Agreement;
2. S.I.S. Fund contributions, as required by this Agreement;
3. Welfare Fund contributions, as required by this Agreement;
4. Pension Fund contributions, as required by this Agreement;
5. Education Fund contributions, as required by this Agreement;
6. Industry Promotion Fund contributions, as required by this Agreement; and
7. Liquidated Damages, interest and attorney's fees as established by the Trustees of the Fund.

Updated bond forms as provided by the Union and reviewed by the NFSA shall be returned by the employer no later than July 1, 2025

Each such bond shall provide, that in the event an Employer rejects this Agreement in connection with a bankruptcy proceeding, this bond shall also guarantee payments to the Welfare, Pension, S.I.S., and Industry Promotion Funds (in that order of priority), which would have been required by this Agreement, but for the Court's Order approving rejection of the Agreement.

Any contractor who becomes signatory to this Agreement must have a bond on file with the Local within fifteen (15) calendar days of the signing of this Agreement.

It is further understood that all Surety Bonds will have a uniform effective date - July 1st of each year. Please make sure your broker is aware of this anniversary date.

In lieu of the bonding requirement of this Article and only with the Union's prior approval, a contractor may obtain an irrevocable and unconditional Letter of Credit in the amount specified above. The necessary and acceptable form for this purpose shall be provided by the Union.

An employer who cannot furnish a cash or surety bond shall, at the option of Local Union 281, make a cash deposit into an escrow account held jointly by Local Union 281 and the employer, and shall make weekly contributions to attain the amount of \$6,000.00 per employee. CIBC shall act as escrow agent of this account. The employer, who fails to make contributions to the Fringe Benefit Trust Funds in any calendar month shall forfeit the proceeds of the escrow account. The Union, as escrow beneficiary, shall be entitled to the proceeds of the escrow account if the employer fails to pay delinquent contributions to the Trust Funds within ten days of receipt of a written notice from the Union of its failure to make required contributions.

The bond, cash or escrow account as outlined above shall guarantee contributions for Wages, Apprentice, International Training, Health and Welfare, Pension, Supplemental Pension, Industry, Pay Day Savings, Union Assessment Check-Off, and any other Funds payments in the manner and in the amount required as per this Agreement.

Any contractor who puts up a cash bond recognizes that in order to defray the costs of maintaining an escrow account for cash bonds, agrees that any interest earnings by such bond shall be the property of the Union.

Should the contractor fail to provide and maintain the Bond or Letter of Credit as required, the Union must remove the employees covered by this Agreement or take other legal action against the Employer, provided however, that the Employer first be given thirty (30) calendar days written notice by the Local Union headquarters of his failure to comply.

Should the Employer fail to pay or make payment arrangements for fringe benefit contributions for thirty (30) or more days, the Union must remove the employees covered by this Agreement from the delinquent Employer, provided however, that the Employer first be given written notice of said delinquency thirty (30) days prior to removing the men.

The Employer shall promptly notify or cause the bonding company or lender to notify the Union of any pending or immediate cancellation of the bond or Letter of Credit, in no event shall said notice be less than thirty (30) calendar days from the date of cancellation or anticipated date of cancellation of said bond or Letter of Credit.

In the event any action is taken by the Union as a result of the Employer's inability to secure, maintain or provide proof of a bond, the Employer shall be responsible for any loss resulting there from, including liable for any and all attorneys fees and costs, auditor fees and costs and liquidated damage in the amount of 10% of the loss.

The Union agrees to provide a bond compliance report to the trustees of the Health and Welfare Fund at each quarterly board meeting.

LATE FILING CLAUSE: It is agreed that in the event the Employer is delinquent at the end of the period in the payment of his contribution to the Health and Welfare Fund, the Pension Fund, or other funds created under this Agreement, in accordance with the rules and regulations of the Trustees of each Fund, the employees and/or the Union shall have the right to take action that may be necessary until such delinquent payments are made; provided however, that such action is subsequent to the Employer receiving notice in writing from the Welfare, Pension, Educational, S.I.S., and/or Industry Promotion Trust Fund Administrator that said contractor is delinquent and it is further agreed that in the event such action is taken, the Employer shall be responsible for any loss resulting there from, including but not limited to interest at the rate of 12%, liquidated damages in the amount of 10% of the delinquency, audit fees and attorneys fees and costs associated with collection efforts under this Agreement.

ARTICLE 25

DURATION OF AGREEMENT: The life of this Agreement shall be from July 1, 2024, to June 30, 2029. Wages and benefits shall be retroactive to July 1, 2024.

ARTICLE 26

PROVISIONS FOR RENEWAL OF AGREEMENT: It shall be provided that not less than six (6) months prior to the termination date of this Agreement, the subscribers thereto upon written notice by either party, shall meet and prepare for such alterations or amendments as may be agreed to. Failure by either party to give the six (6) months prior written notice, this Agreement shall remain in force from year to year until written notice of six (6) months prior to July 1st of any year is served.

ARTICLE 27

SAVINGS CLAUSE: In accordance with the intent and agreement of the parties, the provisions of this Collective Bargaining Agreement shall be interpreted and construed in a manner which is consistent with all applicable Federal and State laws. In the event, however, that any article or provision to this Agreement shall be declared invalid, inoperative or unenforceable by any competent authority of the executive, legislative, judicial, or administrative branch of the Federal or any State government, the Employer and the Union shall suspend the operation of such article or provision during the period of its invalidity and shall substitute, by mutual consent in its place and stead, an article or provision which will meet the objections to its validity and which will be in accord with the intent and purposes to the article or provision in question.

If any article or provision of this Agreement shall be held invalid, inoperative or unenforceable by operation of law or by any of the above-mentioned tribunals of competent jurisdiction, the remainder of this Agreement or the application of such article or provision to persons or circumstances other than those as to which it has been held invalid, inoperative and unenforceable shall not be affected thereby.

ARTICLE 28

LABOR MANAGEMENT COOPERATION COMMITTEE: It is mutually agreed that the Parties to this Agreement shall create a Labor Management Cooperation Committee to discuss mutual concern and problems of the Industry. The Labor Management Committee shall be responsible for establishing and overseeing the Substance Abuse Program. This Committee shall have no authority to change the Collective Bargaining Agreement.

It shall be composed of eight (8) members, four (4) appointed by the NFSA and four (4) appointed by the Local Union.

The LMCC shall be funded with a Five Cents (\$0.05) employer contribution for the duration of this contract.

The employer shall not be responsible for any expense or cost beyond this hourly contribution as set forth herein, unless employer fails to timely remit said payment(s), at which time the employer shall be responsible for interest at the rate of 12%, liquidated damages in the amount of 10% of the delinquency, audit fees and attorneys fees and costs associated with collection efforts under this Agreement.

ARTICLE 29

UNION ASSESSMENT CHECK-OFF: The Employer agrees to deduct Union Working Assessments lawfully and uniformly levied by the Union in accordance with the Constitution and By-Laws of the Union from the pay of each employee who executes or has executed an "Authorization for Check-Off of Work Assessment" form, a draft of which can be found in Addendum C of this Agreement. Such deductions shall be computed and deducted weekly and remitted to Local Union 281 monthly, not later than the 15th day of each month in which the wages were paid.

It is agreed that the Union will send the employer a copy of the executed "Authorization for Check-Off of Work Assessment" forms and any revocation thereof.

Any change in the rate of amount of working assessments levied by the Union shall be put into effect and the deductions made during the calendar month following the calendar month in which the employer received from the Union written notice of the change. The Union agrees to save and hold the Employer and the National Fire Sprinkler Association, Inc. harmless from any action, claim, loss, damage, or the like, including all attorneys' fees, arising from or in any way connected with any deduction made pursuant to this paragraph.

ARTICLE 30

INDUSTRY SUBSTANCE ABUSE PROGRAM: The parties to this Agreement recognize that the dangers and costs which substance abuse can create in the fitter industry as it relates to safety and productivity are significant. The parties, therefore, resolve to combat substance abuse in any form through an industry program to be discussed and agreed upon between the NFSA and Sprinkler Fitters, Local Union No. 281. The parties also agree that to be effective, programs to eliminate substance impairment must contain a strong rehabilitation component. The parties can mutually agree to modify any section of the substance abuse policy and program, so long as adequate notice is provided to the affected employees and bargaining unit members. With regard to bargaining unit members, funding for this program shall be borne solely by the Labor Management Cooperation Committee, and rehabilitation benefits shall be provided by the Local 281 Health and Welfare Fund. When testing is performed, all testing shall be conducted in accordance with the procedures outlined in the program agreed to by the parties to this Agreement. Upon ratification of the new 2011 collective bargaining agreement, the LMCC shall meet to discuss, develop and agree upon an acceptable Industry Substance Abuse Program. Such agreed upon program shall be applicable to all employer non-bargaining unit employees, with the understanding that any employer who already has a similar Substance Abuse Program in effect for non-bargaining unit employees as of the date of implementation, or who implements such a similar Substance Abuse Program subsequent to the date of implementation, will be permitted to retain

and/or introduce such Substance Program for his non-bargaining unit employees in lieu of the negotiated Industry Substance Abuse Program (provided such signatory contractor presents a copy of such “similar” substance abuse program to the LMCC, for review and approval by the LMCC, with input and advice from the Administrator of the negotiated program, and such signatory contractor shall also have a continuing annual obligation to certify in writing to the LMCC that said “similar” substance abuse program is still in effect and being utilized by the signatory contractor). If the LMCC is unable to develop and agree upon a mutually acceptable Program, then the parties shall submit outstanding issues to an independent third party (i.e. – ScreenSafe, a mediator or an arbitrator) to resolve said outstanding issues. The effective date of the Program shall be three (3) months from the date the parties reach an agreement on an acceptable Program. If the general contractor or owner requires drug or alcohol testing other than that provided herein, the Employer shall immediately notify the Union in writing. At the option of the employee or the Union, any employee tested pursuant to procedures other than those agreed to in the Industry Substance Abuse Program as provided for in this Article shall have the right, at the Employer’s cost, to be tested pursuant to the general contractor or owner’s requirements and discipline may be imposed pursuant and subject to the provisions as set forth in the Industry Substance Abuse Program.

ARTICLE 31

MODULAR FABRICATION:

Unless otherwise approved by the Business Manager in writing, which approval shall not be unreasonably withheld, all modular prefabricated whole or partial sprinkler systems or fire control/suppression systems shall be accepted for installation provided there is a U.A. label or the prefabrication of such systems is performed in a shop by men receiving the Sprinkler Fitter building trade rate of the area in which the shop is located. The Employer shall provide written notice to the Union within thirty (30) days of award of all such projects.

ARTICLE 32

GLOBAL POSITIONING SYSTEM AND OTHER ELECTRONIC SURVEILLANCE

Employers may maintain global positioning system (GPS) in company vehicles to keep track of the vehicle location and for other safety related reasons. Employers may not use any information obtained from GPS for disciplinary purposes, except when written consent is obtained from the Union.

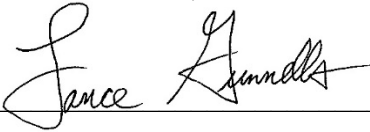
Employers may install outward facing cameras in company vehicles for safety related purposes. No driver audio shall be captured. Cameras may be covered when a vehicle is parked at an employee’s home residence. Information obtained from vehicle cameras may not be used for disciplinary purposes, except when written consent is obtained from the Union

[Signatures Contained on the Following Page]

Dated this Twelfth day of July 2024

For the Party of the First Part

**NATIONAL FIRE SPRINKLER
ASSOCIATION, INC.**



Print Name: Lance Gunnells

Title: Director of Labor Relations and
Associate Counsel

For the Party of the Second Part

**SPRINKLER FITTERS AND
APPRENTICES LOCAL UNION NO. 281
CHICAGO, IL**



Print Name: Bryan LaRoche

Title: Business Manager/Financial Secretary
-Treasurer

ADDENDUM A
to the
AGREEMENT BETWEEN NATIONAL FIRE SPRINKLER ASSOCIATION, INC. and
SPRINKLER FITTERS LOCAL UNION NO. 281, CHICAGO, ILLINOIS
OF THE UNITED ASSOCIATION OF JOURNEYMEN AND APPRENTICES OF THE
PLUMBING AND PIPE FITTING INDUSTRY OF THE UNITED STATES AND CANADA

The following is the jurisdiction of work of the United Association of Journeymen and Apprentices of the Plumbing and Pipe Fitting Industry of the United States and Canada:

1. All piping, valves, Building Information Modeling (BIM), computerized global positioning systems, computer aided drafting and/or hand detail drawing for plumbing, water, waste, floor drains, drain grates, supply, leader, soil pipe, grease traps, sewage and vent lines.
2. All piping for water filters, water softeners, water meters and the setting of same.
3. All cold, hot and circulating water lines, piping for house pumps, cellar drainers, ejectors, house tanks, pressure tanks, swimming pools, ornamental pools, display fountains, drinking fountains, aquariums, plumbing fixtures and appliances, and the handling and setting of the above mentioned equipment.
4. All water services from mains to buildings, including water meters and water meter foundations.
5. All water mains from whatever source, including branches and fire hydrants, etc.
6. All down spouts, drainage areas, soil pipes, catch basins, manholes, drains, gravel basins, storm water sewers, septic tanks, cesspools, water storage tanks, gray water, rainwater and reclaimable water collection of every type and description used for plumbing and pipefitting systems, etc.
7. All liquid soap piping, liquid soap tanks, soap valves, and equipment in bath and washrooms, shower stalls, etc.
8. All bathroom, toilet room and shower room accessories, i.e. as towel racks, paper holders, glass shelves, hooks, mirrors, cabinets, etc.
9. All lawn sprinkler work, including piping, fittings, and lawn sprinkler heads.
10. All sheet lead and copper lining for X-ray rooms, fountains, swimming pools or shower stalls, tanks or vats for all purposes and for roof flashings in connection with the pipe fitting industry.
11. All fire stand pipes, fire pumps, pressure and storage tanks, valves, hose racks, fire hose, cabinets and accessories, and all piping for sprinkler work of every description.

12. All black tin coils, carbonic gas piping for soda fountains and bars, etc.
13. All piping for railing work and racks of every description, whether screwed or welded.
14. All piping for pneumatic vacuum cleaning systems of every description.
15. All piping for hydraulic, vacuum, pneumatic, air, water, steam, oil, or gas, used in connection with railway cars, railway motor cars, and railway locomotives.
16. All marine piping, and all piping used in connection with ship building and ship yards.
17. All power plant piping of every description.
18. The handling, assembling, and erecting of all economizers, super-heaters, regardless of the mode or method of making joints, hangers, and erection of same.
19. All internal and external piping on boilers, heaters, tanks and evaporators, water legs, water backs and water grates, boiler compound equipment, etc.
20. All soot blowers and soot collecting piping systems.
21. The setting, erecting, and piping for all smoke consuming and smoke washing and regulating devices.
22. The setting, erecting and piping of instruments, measuring devices, thermostatic controls, gauge boards, and other controls used in connection with power, heating, refrigerating, air conditioning, manufacturing, mining, and industrial work.
23. The setting and erecting of all boiler feeders, water heaters, filters, water softeners, purifiers, condensate equipment, pumps, condensers, coolers, and all piping for same in power houses, distributing and boosting stations, refrigeration, bottling, distilling, and brewing plants, heating, ventilating and air-conditioning systems.
24. All piping for artificial gases, natural gases, and holders and equipment for same, chemicals, minerals and by-products and refining of same, for any and all purposes, as well as all radon piping and all methane recovery systems.
25. The setting and erecting of all underfeed stokers, fuel burners, and piping, including gas, oil, power fuel, hot and cold air piping, and all accessories and parts of burners and stokers, etc.
26. All ash collecting and conveyor piping systems, including all air washing and dust collecting piping and equipment, accessories and appurtenances and regulating devices, etc.
27. The setting and erection of all oil heaters, oil coolers, storage and distribution tanks,

transfer pumps, and mixing devices, and piping thereto of every description.

28. The setting, erecting and piping of all cooling units, pumps, reclaiming systems, and appurtenances, in connection with transformers, and piping to switches of every description.
29. All fire extinguishing systems and piping, valves, Building Information Modeling (BIM), computerized global positioning systems, and computer aided drafting and/or hand detail drawing, whether by water, steam, gas, or chemical, fire alarm piping, and control tubing, etc.
30. All piping for sterilizing, chemical treatment, deodorizing, and all cleaning systems of every description, and laundries for all purposes.
31. All piping for oil or gasoline tanks, gravity and pressure lubricating and greasing systems, air and hydraulic lifts, etc.
32. All piping for power or heating purposes, either by water, air, steam, gas, oil, chemicals, geothermal, solar or any other method.
33. All piping, setting and hanging of all units and fixtures for air-conditioning, cooling, heating, roof cooling, refrigerating, ice making, humidifying, dehumidifying and dehydrating by any method, and the charging, testing, and servicing of all work after completion.
34. All pneumatic tube work, and all piping for carrying systems by vacuum, compressed air, steam, water, or any other method.
35. All piping to stoves, fire grates, blast and heating furnaces, ovens, driers, heaters, oil burners, stokers, and boilers and cooking utensils, etc. of every description.
36. All piping in connection with central distributing filtration treatment stations, boosting stations, waste and sewage disposal plants, central chlorination and chemical treatment work, and all underground supply lines to cooling wells, suction basins, filter basins, settling basins, and aeration basins.
37. All process piping, valves, Building Information Modeling (BIM), computerized global positioning systems, computer aided drafting and/or hand detail drawing for refining, manufacturing, industrial, and shipping purposes of every character and description.
38. All air piping of every description.
39. All temporary piping of every description in connection with building and construction work, excavating and underground construction.
40. The laying out of piping systems by any mode or method (including computerized global

positioning systems) and cutting of all holes, chases and channels, the setting and erection of bolts, helical piers, inserts, stands, brackets, supports, sleeves, thimbles, hangers (including all seismic hangers), conduit and boxes, used in connection with the pipe fitting industry.

41. The handling and setting of boilers, setting of fronts, setting of soot blowers, and attaching of all boiler trimmings.
42. All pipe transportation lines for gas, oil, gasoline, fluids and liquids, water aqueducts, water lines, and booster stations of every description.
43. All acetylene and arc welding, brazing, lead burning, soldered and wiped joints, caulked joints, expanded joints, rolled joints, or any other mode or method of making joints in connection with the pipe fitting industry.
44. Laying out (including any computerized global positioning systems used in the fabrication process), cutting, bending and fabricating of all pipe work of every description, by whatever mode or method.
45. All methods of stress relieving of all pipe joints made by every mode or method.
46. The assembling and erecting of tanks, used for mechanical, manufacturing or industrial purposes, to be assembled with bolts, packed or welded joints.
47. The handling and using of all tools and equipment that may be necessary for the erection and installation of all work and materials used in the pipe fitting industry.
48. The operation, maintenance, repairing, servicing, inspecting, testing, including but not limited to nondestructive examination, commissioning, renovation, upgrading, modernization, replacement and dismantling of all work installed by journeymen members of the United Association.
49. All piping for cataracts, cascades (i.e. artificial water falls), make-up water fountain, captured waters, water towers, cooling towers, and spray ponds used for industrial, manufacturing, commercial, or for any other purposes.
50. Piping herein specified means pipe made from metals, tile, glass, rubber, plastics, wood, or any other kind of material, or product manufactured into pipe, usable in the pipe fitting industry, regardless of size or shapes.

ADDENDUM B

RESIDENTIAL ADDENDUM

1. Residential Fire Protection work shall be work relating to the installation, dismantling, maintenance, repair, adjustment, and correction of all fire protection fixtures, equipment and systems on:
 1. One or two family dwellings;
 2. All multiple family dwelling units which are permitted to have a single exterior up to and including four stories excluding existing lofts;
 3. Multiple family units with no more than 64 total units.
2. All requests for Apprentices will be processed through the Joint Apprentice Training Committee to perform work covered under this Addendum. The JATC will review the request, and when approved, will have 30 days to provide an apprentice.
3. Apprentices doing Residential work will be under the supervision of a Foreman.
4. Apprentice Training is universal in scope for all Local 281 Apprentices which includes code requirements (13D, 13R) and installation procedures for all piping materials.
5. The number of Apprentices under training shall be determined by the Joint Apprentice Training Committee on a semi-annual basis. The Joint Apprentice Training Committee shall review the number of retirees, deaths, quits, and anticipated workload, etc. in making this determination.
6. A review of this addendum will be done on a semi-annual basis by the Joint Apprentice Training Committee to evaluate this program to determine if any changes should be made. This Committee shall have no authority to change the Collective Bargaining Agreement.

ADDENDUM C
AUTHORIZATION FOR CHECK-OFF OF WORK ASSESSMENT FORM

AUTHORIZATION FOR CHECK-OFF OF WORK ASSESSMENT SPRINKLER FITTERS
LOCAL UNION 281 11900 SOUTH LARAMIE AVENUE
ALSIP, ILLINOIS 60803-3125

TO: Any and all Employers Signatory to a Collective Bargaining Agreement with Local Union 281

I hereby assign to Local Union 281, United Association of Journeyman and Apprentices of the Plumbing and Pipe Fitting Industry of the United States and Canada, AFL-CIO, from any wages earned by me as an employee of any employer who is signatory to a Local 281 Collective Bargaining Agreement (in my present or in any future employment), three percent (3%) of my gross wages for each hour worked per month. This assessment will be deducted from each members' weekly paycheck by your employer under the Local 281 Collective Bargaining Agreement. I authorize and direct you to deduct such other amounts from my pay on a weekly basis and to remit this sum monthly to Local 281 in such manner as may be agreed upon between Local 281 and the National Fire Sprinkler Association, Inc. at any time while this authorization is in effect.

This assignment, authorization and direction shall be irrevocable for a period of one year from the date of delivery hereof to you, or until the termination of the Collective Bargaining Agreement between you and Local 281 which is in force at the time of delivery of this authorization, whichever occurs sooner; and I agree and direct that this assignment, authorization and direction shall be automatically renewed and shall be irrevocable for successive periods of one year each and for the period of each succeeding applicable Collective Bargaining Agreement between an employer with whom I am at that time employed and Local 281, whichever shall be shorter, unless written notice is given by me to the employer with whom I am at that time employed and Local 281 not more than twenty (20) days and not less than ten (10) days prior to the expiration of each period of one year, or of each applicable Collective Bargaining Agreement between an employer with whom I am at that time employed and Local 281, whichever occurs sooner.

This authorization is made pursuant to the provisions of Section 302 (c) of the Labor-Management Relations Act of 1947 and otherwise and shall be effective July 1, 1989 or the date of execution whichever is later.

It is agreed that the above "Authorization for Check Off or Work Assessment" form and "any revocation" thereof shall be executed in triplicate. The original is for the member's record and the remaining two copies are to be mailed to Local Union 281, 11900 South Laramie Avenue, Alsip, Illinois 60803-3125

PLEASE PRINT OR MAKE ANY NECESSARY CORRECTIONS IN YOUR NAME, ADDRESS, LOCAL UA CARD NO., SOC. SEC. NO. Use Ball Point Pen and bear down. You are making three copies.

AFTER COMPLETION KEEP ORIGINAL (FIRST COPY) FOR YOUR RECORDS AND RETURN REMAINING COPIES TO UNION OFFICE.

Local	UA Card Number	Social Security Number
_____ Name	_____ 	_____ Your Signature
_____ Address		_____ Date
_____ City, State and ZIP		_____

PLEASE PRINT THE FOLLOWING:

Employer: _____

Street: _____

City and State: _____

ADDENDUM D
UNITED ASSOCIATION STANDARDS OF EXCELLENCE

WORK STANDARDS AND PRODUCTION

MEMBER AND LOCAL UNION RESPONSIBILITIES:

To ensure the **UA Standard for Excellence** platform meets and maintains its goals, the Local Union Business Manager, in partnership with his implementation team, including shop stewards and the local membership, shall ensure all members:

- Meet their responsibilities to the employer and their fellow workers by arriving on the job ready to work, every day on time (Absenteeism and tardiness will not be tolerated.)
- Adhere to the contractual starting and quitting times, including lunch and break periods (Personal cell phones will not be used during the workday with the exception of lunch and break periods.)
- Meet their responsibility as highly skilled craftworkers by providing the required tools as stipulated under the local Collective Bargaining Agreement while respecting those tools and equipment supplied by the employer.
- Use and promote the local union and international training and certification systems to the membership so they may continue on the road of lifelong learning, thus ensuring UA craftworkers are the most highly trained and sought after workers.
- Meet their responsibility to be fit for duty, ensuring a zero tolerance policy for substance abuse is strictly met.
- Be productive and keep inactive time to a minimum.
- Meet their contractual responsibility to eliminate disruptions on the job and safely work towards the on-time completion of the project in an auspicious manner.
- Respect the customers' property (Waste and property destruction, such as graffiti, will not be tolerated.)
- Respect the UA, the customer, client and contractor by dressing in a manner appropriate for our highly skilled and professional craft (Offensive words and symbols on clothing and buttons are not acceptable.)
- Respect and obey employer and customer rules and policies.
- Follow safe, reasonable and legitimate management directives.

EMPLOYER AND MANAGEMENT RESPONSIBILITIES:

MCAA/MSCA, PFI, MCPWB, PCA, UAC and NFSA and their signatory contractors have the responsibility to manage their jobs effectively, and as such have the following responsibilities under the **UA Standard for Excellence**:

- Replace and return to the referral hall ineffective superintendents, general foremen, foremen, journeyworkers and apprentices.
- Provide worker recognition for a job well done.
- Ensure that all necessary tools and equipment are readily available to employees.

- Minimize workers' downtime by ensuring blueprints, specifications, job layout instructions and material are readily available in a timely manner.
- Provide proper storage for contractor and employee tools.
- Provide the necessary leadership and problem-solving skills to jobsite supervision.
- Ensure jobsite leadership takes the necessary ownership of mistakes created by management decisions.
- Encourage employees, but if necessary, be fair and consistent with discipline.
- Create and maintain a safe work environment by providing site specific training, proper equipment and following occupational health and safety guidelines.
- Promote and support continued education and training for employees while encouraging career building skills.
- Employ an adequate number of properly trained employees to efficiently perform the work in a safe manner, while limiting the number of employees to the work at hand, thereby providing the customer with a key performance indicator of the value of the UA.

Standard for Excellence

- Treat all employees in a respectful and dignified manner, acknowledging their contributions to a successful project.
- Cooperate and communicate with the job steward.

PROBLEM RESOLUTION THROUGH THE UA STANDARD FOR EXCELLENCE POLICY:

Under the **UA Standard for Excellence** it is understood, that members through the local union, and management through the signatory contractors, have duties and are accountable in achieving successful resolutions.

MEMBER AND LOCAL UNION RESPONSIBILITIES:

- The local union and the steward will work with members to correct and solve problems related to job performance.
- Job stewards shall be provided with steward training and receive specialized training with regard to the **UA Standard for Excellence**.
- Regular meetings will be held where the job steward along with UA supervision will communicate with the management team regarding job progress, work schedules, and other issues affecting work processes.
- The job steward shall communicate with the members about issues affecting work progress.
- The business manager or his delegate will conduct regularly scheduled meetings to discuss and resolve issues affecting compliance of the **UA Standard for Excellence** policy.
- The steward and management will attempt to correct such problems with individual members in the workplace.
- Individual members not complying with membership responsibility shall be brought before the Local Union Executive Board, which will address such members' failure to meet their obligation to the local and the UA, up to and including filing charges. The local union's role is to use all available means to correct the compliance problem.

EMPLOYER AND MANAGEMENT RESPONSIBILITIES:

- Regular meetings will be held where the management team and UA supervision will communicate with the job steward regarding job progress, work schedules, and other issues affecting the work process.
- Management will address concerns brought forth by the steward or UA supervision in a professional and timely manner.
- A course of action shall be established to allow the job steward and/or UA supervision to communicate with higher levels of management in the event there is a breakdown with the responsible manager.
- In the event that the employee is unwilling or unable to make the necessary changes, management must make the decision whether the employee is detrimental to the **UA Standard for Excellence** platform and make a decision regarding his/her further employment.

ADDITIONAL JOINTLY SUPPORTED METHODS OF PROBLEM RESOLUTION:

- In the event an issue is irresolvable at this level, the local or the contractor may call for a contractually established labor management meeting to resolve the issues.
- Weekly job progress meetings should be conducted with job stewards, UA supervision and management.
- The local or the contractor may involve the customer when their input is prudent in finding a solution.
- Foremen, general foremen, superintendents and other management should be educated and certified as leaders in the **UA Standard for Excellence** policy.

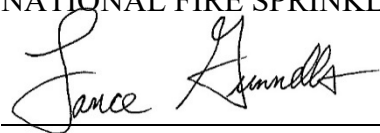
MEMORANDUM OF UNDERSTANDING
BETWEEN THE
NATIONAL FIRE SPRINKLER ASSOCIATION, INC AND
THE SPRINKLER FITTERS AND APPRENTICES LOCAL UNION NO. 281

FOR THE TRANSITION OF NON-UNION INSPECTORS

1. The National Fire Sprinkler Association, Inc, (“NFSA”) and the Sprinkler Fitters and Apprentices Local Union No. 281 (“Union”) are executing this Memorandum of Understanding (“MOU”) simultaneously with the collective bargaining agreement effective July 1, 2024, it being understood that the agreements and understandings herein contained shall have the same effect as if contained in the collective bargaining agreement
2. All existing non-union inspectors employed by any Employer as of July 1, 2024, will be immediately eligible for indenture into the Local 281 apprenticeship program.
3. All inspectors will be evaluated by the Local 281 training department for proper placement into the apprenticeship program. Input from the Employer on proper placement into the apprenticeship program will be considered as part of the evaluation.
4. All inspectors will be indentured into Local 281 and the Local 281 apprenticeship program no later than July 1, 2025, with classes to begin with the next apprenticeship class thereafter.
5. If an Employer employing non-union inspectors as of July 1, 2024, loses an inspector(s) as part of the transition, such Employer shall be given priority for placement of any newly organized apprentices.
6. Effective upon the indenture of all non-union inspectors, any Employer previously ineligible for the Industry Advancement Fund will become eligible to participate in the Industry Advancement Program.
7. Effective January 1, 2025, all pump testing shall be performed by Local 281 members working under the collective bargaining agreement. Industry Advancement Funds will be available for such pump tests in the discretion of the Business Manager.
8. Local 281 agrees, to the extent permitted by state and federal law and consistent with its internal policies and procedures, to use the Industry Advancement Fund to subsidize Employers who experience higher labor costs due to the loss of inspectors as part of the transition.
9. Employers employing higher wage inspectors will be eligible to receive Industry Advancement Funds to subsidize classroom (related instruction) training hours. The amount of any subsidy for classroom training hours shall be in the sole discretion of the Business Manager.
10. Any OSFM-certified inspector may perform inspections and testing alone, provided that if the inspector is an apprentice, the Employer is aware of where the apprentice is working, is readily available to the apprentice and has made sure that the apprentice has the necessary instruction and guidance to perform all tasks safely, correctly, and efficiently.
11. All inspectors that otherwise meet the requirements for journeyman status shall have the ability to test out of the apprenticeship program after being evaluated by the Local 281 Examining Board and successfully scoring higher than eighty percent (80%) on a written test consisting of open and closed book segments and practical proficiency testing.

[Signatures Contained on the Following Page]

NATIONAL FIRE SPRINKLER ASSOCIATION, INC.



Signature

Lance Gunnells

Printed Name

07/12/2024

Date

SPRINKLER FITTERS AND APPRENTICES LOCAL
UNION NO. 281



Signature

Bryan LaRoche

Printed Name

7/12/2024

Date